

# Dialogue in dialog

## The Joint Declaration on the Doctrine of Justification

### Anti-JDDJ: Visions and Realities

By James Arne Nestingen

Compromised both methodologically and in its formulation, the Joint Declaration on the Doctrine of Justification (JDDJ) remains at best a public relations document which will become dangerous if it is granted any authority.

After the great breakthroughs of the 1960s and early 1970s, the ecumenical movement turned to a different method. The discovery of unity in the context of reconciled diversity among the churches, as the older approach was called, had undercut longstanding animosities and prompted hopes of more evident reconciliation. But in the later 1970s, a retrenching Roman Catholicism re-asserted the papacy's traditional requirement for agreement-on-the-whole-and-in-all-of-its-parts as a condition for further progress. Faced with such a demand, ecumenists turned to a method of convergence or consensus. This method tacitly accepts Roman Catholicism's claims to be the normative expression of Chris-

tian faith. It then either deconstructs or devalues as merely denominational the historic differences between Roman Catholics, Lutherans and Protestants, attempting to supercede the differences with statements of convergence or consensus. Technically formulated, the statements simultaneously reflect the diplomacy necessary to their achievement in their reliance on ambiguity.

Reception, the formal process of bringing an agreement home in the various churches, becomes the Achilles heel of convergence ecumenism. The devaluing of difference, the technicalities and the ambiguities all turn into liabilities when seeking support for the formulations, evoking resistance. And so, in the ELCA particularly, reception has become enforcement. The bishops are being mobilized like so many precinct captains to get the votes sought at churchwide assemblies to legitimize the claims of convergence or consensus. Those who value the discounted differences, those who see through the claims to unity in ambiguous technicalities, are simply rolled over—excluded from the process, overpowered at the assemblies and then informed that if they don't like it, they can leave. In a church formulated

on rules of inclusiveness, ecumenism becomes the only legitimate and final form of exclusion.

The second difficulty with JDDJ is in its formulation. A little noticed but very significant breakthrough in 20th century Roman Catholic discussion of justification was produced by Karl Rahner. Writing in articles as well known as those published in *Sacramentum Mundi*, Rahner offered a Luther-like critique of traditional Roman Catholic formulations, complaining of what he called "extrinsicism." Summarized, the official doctrinal statements (in the tradition shaped by Augustine and Thomas Aquinas) are premised on the Greco-Roman concept of eternal law and on Augustine's earlier discussions of free will. These premises lead to extrinsicism according to which the law provides the original way of salvation now fulfilled by Christ; the will provides the essential human capacity for cooperation; and grace the power which, in synthesis with the will, effects newness of life. Justification here becomes a critical turn in the process of moral reordering. Rahner argued that given the priority of law and will, grace is literally extrinsic or antecedent to the system instead of being essential to it. If law and will

had functioned properly, God's grace in Christ would not have been necessary.

The relation between Luther and Thomas is, of course, open to all kinds of questions as is the relation between Luther and Rahner. Luther, like Rahner, found a fundamental problem with Thomistic, substantialist ontology. Luther spoke of justification relationally—thus the *sola fide*—rather than substantially. While he insisted on the priority of the law experientially in essentially psychological ways, theologically he followed the Apostle Paul in defining the law in light of the gospel. “The law, which came 430 years later, does not annul the covenant” (Galatians 3:17). Rather than fitting Christ Jesus into a system of law and will, Luther works with a paradigm of death and resurrection. Thus growth in grace is only secondarily moral. Primarily, as Luther puts in his explanation of the fourth question on baptism in the Small Catechism, it is daily dying and rising with Christ in repentance and faith.

Following the methodology of the convergence school, JDDJ gives priority to the Roman Catholic tradition. So the early Augustine and Thomas Aquinas take a controlling voice. However appreciative the church is or should be of their contributions, in this conception the moral becomes the definitive category of life. Justification becomes a minor transition in a process of rehabilitation in which the morally bad are changed for the good. Moral categories take precedence

over the prior, relational characteristic of faith. Christ comes not to justify the godless but to save the righteous whom by grace, have really applied themselves.

In fact, both the later Augustine and the older Thomas knew better. But bureaucracies, whether in Rome, Geneva, or Chicago, always have something else at stake: trying to protect a place for the church among the world's powers. The doctrine of justification gets subsumed in ecclesiology; the *sola fide* gets taken over in morality schemes. Thus we were treated to the sight of H. George Anderson running behind John Paul II's promulgation of the jubilee indulgence, explaining that it really didn't pertain to justification at all but to sanctification, that is, continuing moral self improvement.

The Lutheran World Federation does not have doctrinal authority, neither does the JDDJ. After years of ecumenical impasse between Roman Catholics and Lutherans, the real purpose of the agreement appears to have been served in the festivities and the press coverage that followed the ceremonial signing on Reformation Day. Yet the Joint Declaration does remain a symbol, if not of real reconciliation with Rome, of Lutheranism's willingness to jettison a doctrine formulated to prioritize the declaration of Christ and his benefits to a world in bondage. Now that the hoopla is over, the document should be filed away for good. If it ever functions authoritatively, it will not only sever Lutheranism's

confessional connections to the Reformation but cut the nerve driving proclamation of the freedom granted in Christ Jesus, whether that witness occurs in the pulpit, in evangelism or mission.

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## Pro-JDDJ: Another Look at the JDDJ

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*By Mark Worthing and Vic Pfitzner*

The signing of the Joint Declaration on the Doctrine of Justification (JDDJ) by representatives of the Roman Catholic and Lutheran churches in Augsburg on 31 October, 1999 is an event of great significance. Not only is it the first theological agreement between our two traditions, but it is also the first theological statement agreed to by Lutherans as an international communion since the *Formula of Concord* in 1580.

Yet for many in our Lutheran family of churches, the achievements of the JDDJ appear to be unwelcome news. Serious protests began with the letter of a number of German Protestant professors in the *Frankfurter Allgemeine Zeitung* on 29.1.98 in which it was claimed that no consensus on a number of key issues had actually been reached. The letter even claimed that the JDDJ was a first step in a Roman Catholic plan in which “Protestant ministers will be integrated into the Roman Catholic hierarchy.” Recently, a small

group of Lutheran theologians including several faculty members of Luther Seminary, St. Paul, sent a letter to Cardinal Edward Cassidy of the Pontifical Council for the Promotion of Christian Unity informing him that they do not see themselves bound by the document and will not teach its content. This and a letter sent out to ELCA clergy by two of the signatories accuse the JDDJ of not being in conformity with the Lutheran Confessions. Just what areas are seen to be deficient and in light of what portions of our Confessions is not stated.

For those who have spent much time with the JDDJ and who are keenly aware of its imperfections there is something very puzzling about these negative responses. There is nothing in the JDDJ that is not explicitly in the Lutheran Confessions—though there are some things there that we Lutherans seem to have forgotten! So why the opposition? Why the cries for revolt? Why do theologians of repute in our tradition suddenly require a greater level of agreement on this and related doctrines from Roman Catholic Christians than we do of our own people?

One fears that we Lutherans have been defining ourselves in contrast to and distinction from Roman Catholics for so long that we feel our very identity threatened when we suddenly find ourselves in substantial agreement with Roman Catholics on such a foundational doctrine as justification.

In Australia, the Lutheran-Roman Catholic dialogue team spent more than three years meticulously working through various versions of the JDDJ while producing our

own *Common Statement on Justification*. We asked the hard questions—repeatedly. We recognized that there were still some important areas, e.g. the sinful nature of the justified, where much further dialogue would be needed. Yet we rejoiced that not only on the international level but in our own national dialogue we were able to clearly affirm together “that sinners are justified by faith in the saving action of God in Christ” (JDDJ, 25).

While we rejoice in this achievement we are certainly aware that much work remains to be done. Serious discussions still need to take place on such matters as Mary and the saints in the light of the doctrine of justification. The release of a new edition of the *Penitenzieria apostolica* (Manual of Indulgences) by the Vatican for the Jubilee year is also a genuine problem for Lutherans—and also, by the way, for many Roman Catholics. Yet it is precisely because of the agreement on the doctrine of justification that we can pursue these questions with our Roman Catholic brothers and sisters on solid theological footing.

It is important that we are clear what the JDDJ is and is not. The document does claim that we agree on enough points that essential agreement exists on the doctrine of the forgiveness of sins through Jesus Christ. It does mean that future discussions can proceed upon a firm biblical and theological foundation. It does mean that, after examining the errors rejected by the Lutheran Confessions and by the Council of Trent concerning the doctrine of justification, both sides

are convinced these condemnations do not apply to the teaching of the other church as stated in the Joint Declaration.

It does not, however, mean that Lutherans and Romans Catholics should reunite. And it does not mean that we agree completely on all aspects of the doctrine of justification. But it is a very important beginning.

In light of this beginning many might ask: ‘Who has changed their view on this doctrine?’ A better question may well be: ‘Why has it taken so long for both traditions to realise they were not as far apart on this doctrine as they thought?’ At the time of the Reformation there were theologians on both sides who felt that basic agreement did exist on the doctrine of justification. In 1541 one of the first dialogues between Roman Catholics and Lutherans occurred when Luther’s colleague Philip Melancthon and the Roman Catholic theologians Johannes Eck and Gasparo Contarini, among others, engaged in a series of theological discussions in Regensburg. They surprised those assembled by reaching agreement on the doctrine of justification. They wrote:

It is known by all Christians and is without any doubt to be believed and confessed that human beings cannot reconcile themselves with God nor free themselves from the bondage to sin. It is only through Jesus Christ, the only mediator between God and humanity, and his grace, that we, as the Apostle declares in his let-

ter to the Romans, are not only reconciled with God and set free from the bondage to sin but also participate in the divine nature and become children of God. (Article 5, *The Regensburg Book*).

After nearly 500 years we are only now picking up where the Reformation era dialogue on this important article of faith left off. The Lutheran tradition began as, and at its heart remains, a reforming movement within the whole church. For Lutheran Christians, therefore, despite glitches along the way and some lingering reservations, this development can only be welcomed with joy and thanksgiving. The JDDJ, for all its imperfections, is one of the most important theological agreements of our time. It deserves the support of all Lutherans.

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## Pro-JDDJ: Justification and the World's Religions

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By Kenan B. Osborne

The Joint Declaration on the Doctrine of Justification (JDDJ) is clearly a milestone in Lutheran-Roman Catholic dialogues, since it is presented by the highest ranks of both churches. Although it is smaller in scope than the document and concomitant writings which the Lutheran-Roman Catholic Bilateral Consultation produced in

their volume published in 1985, the prestige of this new document stems from the international and high level church sources which have produced it.

In the *Catechism of the Catholic Church* a discussion of the issue of justification can be found only from nn. 1987 onward—in the last one-third of the book. In many ways, this structuring indicates how far the two churches still are from one another. For the Lutheran Church, justification begins on page one; for the Roman Catholic Church it appears much later. In no. 18 of the JDDJ, we read that justification is “an indispensable criterion which constantly serves to orient all the teaching and practice of our churches to Christ.” Were this really the case, then the *Catechism* could hardly begin its thorough discussion on justification in the last one third of the text.

This is the situation today as we move into the third millennium. If we look at the Roman Catholic Church at a prior time, namely, when the decree on justification was promulgated in 1547, there was a clear statement that human actions in no way bring about justification. Still, Roman Catholic teaching in the post-tridentine time continued to ascribe good works with some kind of efficacy. In many ways, on the issue of justification both churches continued to pass each other like ships in the night.

In a meeting on this same joint declaration, held in San Jose, California last fall, Pacific Lutheran Theological Seminary President Timothy Lull and I both gave pre-

sentations. Both of us admired what had been written, and our esteem was founded basically on the historical perspective which the JDDJ develops. The declaration looks back at what has often been termed “the mine fields of history” between the two churches on this issue. These “mine fields” are those times and places in which the Lutheran Church and the Roman Catholic Church had moved in divisive and antagonistic directions. At that conference, both Dr. Lull and I considered that the declaration was actually more historically oriented than future oriented. In the JDDJ there are apologies for past grievances, which undoubtedly are necessary; however, there is little consideration of our present third-millennium world view.

By this I personally mean—and I am not citing Dr. Lull—that both churches today face a quite different actuality as regards justification. Never in the entire history of the Christian churches has there been the kind and depth of multiculturalism which both Lutheran and Roman Catholic Churches face today. In the past, both of these churches in their “missionary activity” brought a Euro-Anglo-American church to other cultures. There was indeed an evangelizing which took place, and there was a *plantatio ecclesiae* in many parts of the world. But the message of evangelization was European in form and background, and the new church structures reflected the Euro-Anglo-American church structures.

Today, however, there is an “inculturation” process which

moves more strongly towards the other cultures' thinking, philosophy, and symbol-systems. Inculturation is not accepted as a form of colonization. Rather, it is an attempt to live out the gospel message on the respective culture's own terms, from its own cultural base and, taken in a wide sense in a language base which includes the *epistémé* of a culture and its *état de langue*. Translation, whether verbal or intellectual, is a thing of the past.

The combination of evangelization and multi-culturalism has, however, brought about still another profound issue which Christian Churches have not wished to face in any thorough-going way: the presence of "justification" in the many non-Christian religions. This topic presents a different spin on the very center of Christian justification, since it raises the issue of the role of Jesus in universal justification. This latter issue on the Jesus element in justification is only beginning to be considered by such authors as J. Dupuis, M. Amaldoss, and A. Pieris.

In the JDDJ, mention is often made as regards the New Testament witness of God's saving action in

Christ. All people are called by God to salvation, but this is accomplished in Christ. "Through Christ alone are we justified." [16]

As we enter this new millennium, there is a more positive honoring of non-Christian religions by Christian churches. This is not simply honoring a good Buddhist or a good Taoist, but it is an honoring of the various forms of Buddhism and Taoism as such. There is something sacred in these religions, in their writings, in their liturgies, in their spiritualities. There is something sacred not only in good people, but in the religions themselves.

All of this indicates that holiness is another word for justification, but in these instances there seems to be a thin connection at best to "through Christ alone are we justified." Theologians such as K. Rahner attempted to speak about "anonymous Christians" while others spoke about "implicit Christians." Neither of these formulations have been considered as satisfactory. Inter-religious dialogue has demanded that Christians hear and respect their dialogical partners and not simply follow a so-called

dialogue with Christian promulgation.

Much needs to be done on these issues of third-millennium justification. This is why, in my view, as we enter the new millennium, the very depth and breadth of the term justification raises questions which Luther, Calvin and the bishops of Trent never thought about. Just as the leaders at the time of the Reformation expressed themselves on this key issue in strong, even heated, ways, so too we today need to take up the same theme, and in strong and even heated ways consider justification from a larger universe of discourse and at the same time a rethinking of our biblical sources.

How can we say on the one hand that God has called all people to salvation and on the other hand say that only through Christ are all people justified? Perhaps Luther, Calvin and the bishops of Trent are glad they lived at a time in which the edges of their horizon were not so global; perhaps they are saying today: we did our part, now it is up to you in this new millennium to do your part. •